

**Court No. - 34**

**Case :-** WRIT - C No. - 18728 of 2020

**Petitioner :-** Anwari

**Respondent :-** State of U.P. and Another

**Counsel for Petitioner :-** Ruksana

**Counsel for Respondent :-** C.S.C.

**Hon'ble Mrs. Sunita Agarwal,J.**

**Hon'ble Jayant Banerji,J.**

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent no.2. Learned Standing Counsel appears for the respondent no.1.

By means of the present petition, the petitioner herein prays for quashing of the electricity bill-cum-disconnection notice dated 03.12.2019 issued by the respondent no.2.

The contention of learned counsel for the petitioner is that the husband of the petitioner had passed away and her name is required to be incorporated in the bill and moreover, there is some dispute with regard to the bill. At this stage, Sri Baleshwar Chaturvedi, learned Advocate states that under the facts and circumstances of the case, the appropriate remedy is available under Section 6.5 of the U.P. Electricity Supply Code, 2005 for which a representation is required to be made before the Executive Engineer concerned.

In this view of the matter, it is directed that in case the petitioner files a fresh application/representation under Section 6.5 of the Code, 2005 before the Authority concerned along with copy of the order passed today, the authority shall take a decision thereon, expeditiously.

With the aforesaid observations, the writ petition is ***disposed of***.

**Order Date :-** 3.12.2020

P Kesari